DOCUMENT 7 — CONSTITUTIONAL, FEDERAL, AND PROCEDURAL STRESS TEST (REVISION 5)

Earlier analysis is in `archive-rev4/07` and `archive-rev3/07`. Revision 5 removes the highest-risk provision (the escalating payments) and fixes the two open federal questions in the support provisions.

#	Provision	Exposure	Risk
1	Restored status; first schedule motion at 50/50	Retroactivity; due process	Low-moderate
2	Status vs. schedule; no pre-order removal rule	Self-help	Low-moderate (political)
3	Presumption; enumerated grounds; floor	*Troxel*; individualized determination	Low-moderate
4	**R5:** child's preference at 12	Child welfare; burden on child	Low-moderate
5	Court orders control; GAL and coordinator limits	Separation of powers	Low
6	FSEA	Judicial power; due process	Low
7	**R5:** service costs, including GALs	Separation of powers; rules vs. statute; fiscal	Moderate (fiscal)
8	Support components and accounting	IV-D; guidelines; UIFSA; Bradley	**Low-moderate** (was moderate)
9	36-month limit	Safety; due process	Low-moderate
10	False allegations	Chilling reports	Low
11	Criminal clarifications; prosecutor notice	Vagueness; discretion	Low
12	Protection orders	Victim safety	Low
—	~~Escalating payments~~	Deleted in R5	—

1–3. Status, restoration, presumption (carried forward)

- **Restoration** changes status only, by motion, after notice and a hearing opportunity, with safety exceptions. It changes no schedule. Retroactivity risk is low because no vested right in sole status is impaired without process.
- **The presumption** is rebuttable on a preponderance, with an endangerment ground broad enough to reach any genuine harm. The bill is stricter than the enacted states, which rebut on best interest. That is the main policy attack. The 3109.401 fit-parent finding aligns with *Troxel v. Granville*, 530 U.S. 57 (2000).

4. Child's preference at twelve (R5)

Attack 1. "Presumptive weight at 12 puts the child in the middle and invites coaching." - *Answer:* the preference comes only through the existing in-chambers interview (3109.04(B)), after the court screens reasoning ability and may decline for "special circumstances." The court departs if the preference "is not the child's own reasoned view." No child must state one, and the statute says the court decides.

Attack 2. "It lets a child override safety." - *Answer:* the preference yields when following it "would endanger the child."

Attack 3. "It conflicts with the 90-night floor." - *Answer:* the floor now expressly yields to a followed preference, so there is no conflict.

Risk: low-moderate. Twelve is younger than Georgia's presumptive age (14). The written-findings departure keeps judicial control.

5. Court orders control (carried forward)

The rule restates the constitutional allocation of judicial power (Ohio Const. art. IV, § 1) and the case-law limit on delegation (*Weisgarber*; *Gregory*). Emergency authority, protection orders, and 2151.31 custody are preserved. **Risk: low.**

6. FSEA (R5)

- **Judicial power.** Nothing binds until a court enters it, after a 14-day objection window and a hearing decided anew within 28 days. That is the R.C. 3119.63–.66 and 3111.49 model. No contempt power (*Hale*; *Zakany*).
- **Due process** (*Mathews*): notice, response, a written determination, objection, and a de novo hearing. The only administratively computed consequence is make-up time.
- **Optional.** Direct contempt remains, so no parent is forced into the agency.
- **Penalty problem eliminated.** With the money payments deleted, no punitive consequence is imposed outside contempt.

Risk: low (was low-moderate).

7. Service costs, including GALs (R5)

Attack 1 (separation of powers). "Courts control GAL appointment and compensation (Sup.R. 8.02)." - *Answer:* the bill does not stop a court from appointing anyone. It regulates who may be charged. That is a substantive allocation of cost between litigants and the public. Superintendence rules (art. IV, § 5(A)) do not displace statutes on substantive matters. Counsel should confirm (Document 10).

Attack 2 (gaming). "A parent will refuse to pay so the other parent or the county pays." - *Answer:* that is the policy. A parent who requests a service may be charged; agreements to split cost are enforceable. Costs, fee awards, and remedial orders after misconduct findings are preserved.

Attack 3 (fiscal). "Free GALs are expensive." - *Answer:* true. A court may stop requiring a paid service, so there is no mandate in form, but GAL use is common, so the fiscal note will show a real cost (Document 9).

Risk: moderate, mostly fiscal. Legal risk is low.

8. Support components and accounting (R5)

Federal definitions. Both components are "child support" under 42 U.S.C. 659(i)(2). Parental support is support *of the child* through the household, and the bill says "neither is spousal support." Withholding, IV-D enforcement, and arrears are unaffected.

Guidelines (45 CFR 302.56). The total is computed exactly as now. Designation uses existing worksheet figures (child care; 3119.22 deviations) plus agreed or found amounts, with no invented percentage. **R5:** the credit is a 3119.22 deviation whose finding is the entered determination, which satisfies 302.56(g)'s written-finding requirement with a state-established criterion.

Bradley Amendment (42 U.S.C. 666(a)(9); R.C. 3119.83). The credit applies only to future installments, entered by the court. Arrears are never reduced.

UIFSA (R5). Under R.C. 3115.604(A), Ohio law governs the "other obligations" of an Ohio order wherever registered. Under 3115.205 and 3115.603(C), only the tribunal with continuing, exclusive jurisdiction may modify. Section 3119.024(G) limits the accounting and credit to that situation. Revision 4's open question is resolved.

Distribution. Collections are distributed under 42 U.S.C. 657 as now. The accounting is a post-receipt duty of the obligee. Assigned support is exempt.

Due process (obligee). Annual cap; the agency redacts protected information; payee, date, and amount only; statements suffice; no itemizing or receipts; savings count; court entry after objection.

Policy attack. "It burdens low-income parents." *Answer:* where, not what; a card statement is enough; no receipts; assigned support exempt; accountable support is only what the order designates.

Risk: low-moderate (was moderate). The residual item is implementation: the statewide support system needs a component field. The one-year delayed start covers it.

9–12. Carried forward

- **36-month limit:** safety is preserved by the 90-day hearing, the court-set 30-month hearing, one extension, and emergency savings. **Low-moderate.**
- **False allegations:** clear and convincing evidence of all three elements; express protection for good-faith reports. **Low.**
- **Criminal:** no new crime; the clarifications codify *Parra*; prosecutorial discretion is intact and the declination is unreviewable (*Master*; *Rankin*). **Low.**

- **Protection orders:** full-hearing orders defeat the presumption; ex parte orders govern by their terms until the 7- or 10-day hearing. **Low.**

Facial-invalidity screen

No provision was found facially invalid under the Ohio or U.S. Constitution or preempted by federal law. The two items that were exposed in Revision 4 (penalty without contempt; credit vs. guidelines and UIFSA) are removed or fixed in the text.